

Court No. - 21

Case :- WRIT - C No. - 28049 of 2024

Petitioner :- Pushpa Devi

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Sarveshwari Prasad

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. Counsel for the respondent, Electricity Department, prays for and is granted time to obtain instructions.

2. List as fresh on 21 September 2024.

Order Date :- 29.8.2024

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(Manish Kumar Nigam,J.) (Manoj Kumar Gupta,J.)

Court No. - 29

Case :- WRIT - C No. - 28049 of 2024

Petitioner :- Pushpa Devi

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Abhishek Kesarwani,Rahul Mishra,Sarveshwari Prasad

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard learned counsel for the petitioner, Sri Rajiv Gupta, learned Additional Chief Standing Counsel for State-respondent no.1 and Sri Chetan Chatterjee, learned counsel for respondent nos.2 and 3.

2. The instant writ petition is preferred inter alia with the following reliefs:-

"(i) Issue a writ, order or direction in the nature of certiorari to quash the impugned notice dated 25.05.2024 and 29.05.2024, in against Connection No.-5058373000 and Connection No.2, against the petitioner on the basis of false and fabricated manner contained as Annexure, to this writ petition in the interest of justice.

(ii) Issue a writ, order or direction in the nature of mandamus to decide the representation/reminder/objection, in pursuance to the recovery, within time stipulated manner in the light of Rule 6.5 of Electricity Supply Code, 2006."

3. Learned counsel for the petitioner questioned the validity of the impugned notices issued by the Electricity Department on the premise that the alleged inspection has been carried out and without taking recourse, as contained under Section 126 of Electricity Act, 2003, which deals with the assessment, the provisional assessment has not been made in accordance with law. He submits that the petitioner has every right to question the said illegal action and against the assessment under Section 126, the matter may not be relegated to the Appellate Authority under Section 127 of the Electricity Act, 2003.

4. Sri Chetan Chaterjee, learned counsel for the electricity department, on the instructions, states that admittedly, the notices were issued but till date against the notices the petitioner neither had turned up nor has filed any objection. He fairly conceded to

the extent that till date the assessment has not been taken against the order passed under Section 126 of the Electricity Act, 2003. The petitioner has right to challenge the same under Section 127 of the Electricity Act, 2003. He submits that in case the petitioner files an objection within reasonable time then definitely the authority would proceed in accordance with law.

5. Considering the factual situation, we are not inclined to entertain the writ petition at this stage. Suffice to indicate that in case the petitioner files an objection to the impugned notices within two weeks from today, we hope and trust that the Prescribed Authority would decide the objection in accordance with provisions contained under Section 126 of the Electricity Act, 2003 read with U.P. Electricity Supply Code, 2005. The impugned notices would be subject to the final outcome of the proceeding.

6. With the aforesaid observations, the writ petition is disposed of, accordingly.

Order Date :- 21.9.2024

Manish Himwan